

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL MISCELLANEOUS JURISIDITION)

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No. 29603 of 2022

Abu Raihan alias Mahmud alias Abdul Hadi

.... Accused-Petitioner

-Versus-

The State

.... Opposite Party

Mr. Muhammad Masud-ul-Haque, Advocate

.... For the petitioner.

Mr. Sujit Chatterjee, D.A.G.with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Heard and Judgment on 17.01.2024

S M Kuddus Zaman, J:

On an application under section 498 of the Code of Criminal Procedure this Rule was issued calling upon the opposite party to show cause as to why the accused petitioner should not be enlarged on bail in Sherebanglanagar Police Station Case No. 27 dated 28.08.2014 corresponding to G.R. Case No. 237 of 2014 under Section 396 of the Penal Code, 1860, now pending in the Court of learned Chief Metropolitan Magistrate, Dhaka and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that on 28.08.2014 unknown accused persons committed dacoity and murdered of victim Maulana Nurul Islam Faruki.

Mr. Muhammad Masud-ul-Haque, learned Advocate for the petitioner submits that the accused petitioner Abu Raihan alias Mahmud alias Abdul Hadi was arrested in connection of this case on suspicious on 24.11.2019. But till date the investigation could not be concluded. There is no certainty when the trial of the case will start. There is no incriminating material on record showing complicity of the accused person with the commission of above offence.

Mr. Sujit Chatterjee, learned Deputy Attorney General raises objection in granting of the bail at this point of time.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

It transpires from the record that the petitioner namely Abu Raihan alias Mahmud alias Abdul Hadi was arrested on 24.11.2019. He did not make any confession. No other co-accused made any confession in this case. The investigation of the case is ongoing, as such there is no certainty as to when the trial of the case will start.

On consideration of above materials on record, we are inclined to grant bail of the petitioner.

In the result, the Rule is made absolute.

Let the accused-petitioner namely Abu Raihan alias Mahmud alias Abdul Hadi, son of Moulana Habibur Rahman be enlarged on bail subject to furnishing bail bond to the satisfaction of the learned Chief Metropolitan Magistrate, Dhaka.

The learned Judge of the Court below is at liberty to cancel the bail of the accused-petitioner if he misuses the privilege of bail in any manner whatsoever.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.